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Case Number: 25NNCV06963 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S.

Arian, Dept B

MOTION FOR PRELIMINARY INJUNCTION

Hearing Date: 06/26/26

CASE NO./NAME: 25NNCV06963 NOHO

VILLAGGIO v. A STEP TO FREEDOM, et al.

Moving Party: Plaintiff Noho

Villaggio

Responding Party: Defendants A Step

to Freedom and 113 Huston, LLC

Notice: Sufficient

Ruling: MOTION FOR PRELIMINARY

INJUNCTION IS GRANTED IN PART.

BACKGROUND

This

case arises from Plaintiff Noho Villaggio's ("Plaintiff") various problems with the transitional housing property ("Premises") owned by Defendant 113 Huston, LLC and leased by Defendant A Step to Freedom (collectively, "Defendants").

On

October 1, 2025, Plaintiff filed a complaint against Defendants alleging (1) public nuisance; (2) private nuisance; (3) breach of the implied covenant of quiet enjoyment; (4) trespass; (5) negligent hiring, supervision and retention of employees; (6) unlawful business practices.

On

February 6, 2026, Plaintiff filed this motion for preliminary injunction. Defendants filed an opposition. Plaintiff filed a reply.

On

April 3, 2026, this Court held a hearing on this motion. After reading and considering the moving documents and oral arguments, the Court issued a tentative ruling reflected in its April 3, 2026 Minute Order, continued the matter, and directed supplemental briefing. The matter was continued to May 8, 2026, and, on the parties' stipulation, again to June 26, 2026

On

April 17, 2026, Defendants filed supplemental briefing. On June 22, 2026, Plaintiff filed a supplemental brief. Plaintiff also lodged a revised proposed order. The Court, having considered the supplemental record and the arguments of counsel, rules as follows.

LEGAL STANDARD

"Trial courts traditionally consider and weigh two factors in determining whether to issue a preliminary injunction. They are (1) how likely it is that the moving party will prevail on the merits, and (2) the relative harm the parties will suffer in the interim due to the issuance or nonissuance of the injunction." (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (Butt v. State of California (1992) 4 Cal.4th 668, 678.)

The general objective in issuing a preliminary injunction is to preserve the status quo. (Continental Baking Co. v. Katz (1968) 68 Cal.2d 512, 528.) In addition, it is rarely appropriate to grant a preliminary injunction that not only does not preserve the status quo but also

grants the ultimate relief sought in the action, before trial. (Paramount Pictures Corp. v. Davis (1965) 228 Cal.App.2d 827.) A preliminary injunction must not issue unless the plaintiff can demonstrate reasonable probability that he will prevail on the merits, regardless of the balancing of the hardships or the irreparable nature of the harm. (San Francisco Newspaper Printing Co. v. Superior Court (1985) 170 Cal.App.3d 438, 442.)

DISCUSSION

The

Court issued a Minute Order on April 3, 2026, following the hearing on that date. The Court references the tentative ruling in the Minute Order and again finds the following:

· Plaintiff

fails to establish the likelihood of prevailing on the merits of the public nuisance cause of action.

· Plaintiff

establishes the likelihood of prevailing in part on the private nuisance cause of action.

· Plaintiff

fails to establish the likelihood of prevailing on the merits of the breach of implied covenant of quiet enjoyment cause of action.

· Plaintiff

fails to establish the likelihood of prevailing on the merits of the trespass cause of action.

· Plaintiff

fails to establish the likelihood of prevailing on the merits of the negligent hiring, retention, and supervision cause of action.

· Plaintiff

fails to establish the likelihood of prevailing on the merits of the unfair business practices cause of action.

· Plaintiff's

showing of interim harm in support of a full injunction is weak, because an

injunction granted in full would preclude Defendants from using the Premises as transitional housing and would not maintain the status quo.

· Defendants'

showing of interim harm against a full injunction is strong, because an injunction granted in full would displace 68 individuals. The status quo is maintained if the full injunction is not issued.

· Plaintiff's

motion for preliminary injunction is denied as to paragraphs 1(a), 1(b), 1(c), 1(d), and 4 of Plaintiff's proposed injunction.

Additionally

at the hearing, the Court found paragraph 2 of the proposed injunction to be potentially confusing and determined it to be unnecessary to so order. Thus, the Court indicated it did not intend to include paragraph 2 in any injunctive relief. The Court maintains this position.

The

Court requested further briefing regarding paragraph 1(e). of Plaintiff's proposed injunction which states:

1. Pending final judgment or

further order of this Court, Defendants A Step to Freedom and 113 Huston, LLC, and their officers, directors, members, managers, employees, agents, representatives, program participants, invitees, licensees, and all persons acting in concert or participation with any of them, who receive actual notice of this Order, are hereby RESTRAINED AND ENJOINED from:

...

e. Permitting the use of outdoor

parking areas, garages, or common areas at the Premises as living quarters, gathering spaces, or de facto program or office space in a manner that generates the noise, traffic, loitering, and criminal activity described in the evidence supporting the Motion.

Supplemental

Evidence

In

its April 3 ruling the Court observed that the declaration of Plaintiff's Board President, Dominic Dufort, did not attest to incidents personally witnessed by him and was therefore of limited evidentiary value. The supplemental declarations of Mr. Dufort and resident David Boisclair cure that deficiency. Both now testify, on personal knowledge and with specific dates and times, to recurring nighttime alarms, late-night music and yelling, open-door gatherings audible inside Plaintiff's units, and smoking at the shared boundary and beneath Plaintiff's windows between April 14 and June 16, 2026. The Court considers this competent evidence, and finds that it corroborates and strengthens the narrow private-nuisance findings already made.

Plaintiff

also submits, through the Raducu declaration, agreements between A Step to Freedom and LAHSA and Los Angeles County obtained under the Public Records Act. The Court considers these only for the limited purpose of showing that the operational measures requested are consistent with obligations applicable to publicly funded providers. The Court affords them limited weight: the LAHSA agreement recites a term ending June 30, 2025, the agreements describe different program types, and Plaintiff's foundation does not establish that either is the specific operating agreement governing this Premises during the relevant period. The Court does not rely on these agreements as an independent basis for any term of relief.

Further Briefing

Defendants

argue that the proposed language in paragraph 1(e) is vague, overbroad, unworkable, and uncertain. Defendants also argue paragraph 1(e) would restrict lawful activity under the term "office" use.

Defendants request the Court to withhold issuing an order and direct the parties to mediation. The Court declines this request.

In the alternative, Defendants also propose that if the Court determines injunctive relief is appropriate, then paragraph 1(e) should be rejected and the Court should adopt its proposed compromise to address Plaintiff's concerns.

Paragraph

1(e)

An

injunction is unconstitutionally vague if it does not clearly define the persons protected and the conduct prohibited. (Evans v. Evans (2008) 162 Cal.App.4th 1157, 1167.) An injunction must be narrowly drawn to give the party enjoined reasonable notice of what conduct is prohibited. (Midway Venture LLC v. County of San Diego (2021) 60 Cal.App.5th 58.) “An injunction must not be uncertain or ambiguous and the defendant must be able to determine from the order what he may and may not do.” (Bring Back the Kern v. City of Bakersfield (2025) 110 Cal.App.5th 322, 357.)

California

courts apply the same narrow-tailoring principles articulated in Madsen v. Women’s Health Center, Inc. (1994) 512 U.S. 753. Under this standard, even a content-neutral injunction must “burden no more speech than necessary to serve a significant government interest.” (Id. at p. 765.) This principle is consistent with the general rule that “injunctive relief should be no more burdensome to the defendant than necessary to provide complete relief to the plaintiffs.” (San Diego Unified Port Dist. v. U.S. Citizens Patrol (1998) 63 Cal.App.4th 964, 971 (quoting Madsen, supra, at p. 765.)

Defendants

argue the language in paragraph 1(e) “in a manner that generates the noise, traffic, loitering, and criminal activity described in the evidence supporting the Motion” is too vague and subjective. Furthermore, Defendants argue the terms “living quarters,” “gathering spaces,” and “de facto program or office space” are not defined and thus do not provide sufficient guidance. Defendants argue that the Court would be unable to meaningfully enforce the order.

Defendants

also argue the language of paragraph 1(e) would improperly regulate lawful, ordinary residential conduct. This includes using outdoor areas, courtyards, meeting rooms, garages, and common spaces for ordinary residential purposes such as sitting outside, talking together, walking through common areas, and accessing designated smoking areas. Additionally, Defendants contend the meeting rooms are used for storage and group sessions which are activities that are incidental to supportive housing and required by program operations.

The

Court agrees with Defendants that paragraph 1(e) is vague. The uncertainty regarding the proposed enjoined activities and standards would create issues with enforceability. Furthermore, the language of paragraph 1(e) would enjoin lawful activities such as residential gatherings and program operations. This broad language would not be narrowly tailored to the complained of nuisance conditions.

Defendants'

Proposal

Defendants present a compromise that they assert responds to the Court's comments regarding tenant agreements and reasonable oversight, avoids regulating lawful conduct such as smoking, and focuses on reasonable expectations for residential living. Defendants' proposal is as follows:

Pending final judgment or further

order of this Court, Defendants A Step to Freedom and 113 Huston, LLC shall:

(1) enforce designated smoking

areas located in the center courtyard and away from the perimeter wall adjacent to Plaintiff's property;

(2) enforce noise levels consistent

with the Los Angeles Municipal Code ("LAMC"), including the objective residential noise limits in LAMC § 116.01 and the ambient-noise measurement standards in LAMC § 111.00, et seq.;

(3) relocate the check-in area to

the opposite end of the ASF property, furthest from Plaintiff's property line;

(4) relocate resident meeting rooms

and areas to the eastern portion of Defendant's property and away from Plaintiff's property;

(5) maintain reasonable supervision

of outdoor and common areas to ensure compliance with these standards; and

(6) maintain quiet hours between 10:00 p.m. and 7:00 a.m. to further minimize incidental nighttime noise.

Defendants may install shade sails or similar privacy structures such as trellises to reduce visibility and provide additional noise buffering. Nothing in this Order shall prohibit residents from using outdoor areas, meeting rooms, garages, courtyards or common areas for ordinary residential purposes or prohibit Defendants from conducting program-incidental activities such as resident check-ins or supportive-services sessions.

Defendants argue these are targeted measures that address Plaintiff's concerns through objective standards without vague and sweeping language.

Scope of Relief

Both

parties have converged on a framework of objective, measurable conditions. Plaintiff's revised proposed order adopts the six measures Defendants proposed—relocating the designated smoking area, enforcing municipal noise standards, relocating the check-in station and resident meeting areas, supervising outdoor and common areas, and observing quiet hours—and adds related operational and documentation measures, set out in paragraphs 3.1 through 3.15. Having reviewed each, the Court finds the framework proposed by Plaintiff to be sound and sufficiently comprehensive to accomplish appropriate limitations to ensure that the neighborhood and Defendants will peacefully co-exist. The Court thus adopts Plaintiff's proposal with the following modifications, which are necessary to confine the relief to the elimination of the nuisance and no further.

· The

Order binds Defendants and their officers, directors, members, managers, employees, and agents, and persons acting in concert with them who receive actual notice. The operative measures require Defendants to regulate the conduct of their residents, staff, and agents, and to undertake the specified relocation, supervision, and documentation measures, to the extent within Defendants' reasonable control. Defendants are not required to guarantee the conduct of independent third parties not subject to their direction.

· Paragraphs

3.1, 3.2, 3.4, 3.5, 3.6, 3.7, and 3.13—the relocation, noise-enforcement, quiet-hours, monitoring, and neighbor-contact measures—are adopted as proposed. They are objective, tied to the proven nuisance conditions, and enforceable.

· Paragraph

3.3 (noise enforcement consistent with the Los Angeles Municipal Code) is adopted as modified, as a floor and not a safe harbor. Compliance with LAMC sections 116.01 and 111.00 et seq. does not by itself establish that a given level or duration of noise is permissible, because recurring noise may constitute a nuisance even absent a code violation.

· Paragraphs

3.9 and 3.15 (progressive corrective action and tenancy-sustaining interventions) are adopted as proposed. They require Defendants to use their existing program tools to address recurring rule violations before resorting to transfer or removal, are expressly qualified by program rules and applicable law, and are consistent with preserving the supportive-housing program and its residents' tenancies.

· Paragraphs

3.8, 3.10, and 3.12 (incident documentation, boundary-monitoring protocol, and quality-control process) are adopted as tailored components of nuisance abatement, and not on the basis of the LAHSA or County agreements. Documentation under these paragraphs is limited to incidents bearing on the noise, smoking, loitering, and related conditions addressed by this Order.

· Paragraph

3.11 (retention of incident reports) is adopted as modified. Defendants shall retain such reports in the ordinary course consistent with their document-retention policies. The clause directing that reports be preserved “for production as may be required by law or further court order” is stricken as unnecessary to nuisance abatement; preservation and production of documents for litigation are governed by the Civil Discovery Act, not by this Order.

· Paragraph

3.14 (staffing and supervision) is adopted as a general backstop to the specific obligations above.

So

modified, the relief is confined to the manner of use of the outdoor parking areas, garage, and common areas. It does not restrict the lawful operation of the supportive-housing program, the categories of persons served, or any conduct occurring within the residential units. It is the least disruptive remedy adequate to the harm the Court has found.

Undertaking

A

preliminary injunction ordinarily requires an undertaking to compensate the enjoined party for damages sustained if it is later determined the injunction should not have issued. (Code Civ. Proc., § 529.) In light of Plaintiff's nonprofit status (Code Civ. Proc., § 995.240), the limited and operational nature of the relief, and the Court's finding that Defendants have not shown any cognizable interim harm from a narrow order, the Court sets the undertaking at \$2,500. The injunction shall take effect upon Plaintiff's posting of the undertaking and service of a Preliminary Injunction consistent with this ruling on Defendants' counsel. (Plaintiff is to submit a Proposed Preliminary Injunction consistent with this ruling for the Court's signature, which Plaintiff will then serve on Defendant's counsel.)

CONCLUSION AND ORDER

Plaintiff's

motion for preliminary injunction is GRANTED IN PART. The motion is denied as to all relief other than the manner of use of the outdoor parking areas, garage, and common areas of the Premises, and Defendants' request to defer all relief to mediation is denied. A preliminary injunction shall issue requiring Defendants to implement the measures in paragraphs 3.1 through 3.15 of Plaintiff's revised proposed order, as modified herein, for the limited purpose of abating the nuisance conditions associated with the outdoor parking areas, garage, and common areas, and to the extent within Defendants' reasonable control. Nothing in this Order prohibits Defendants from operating lawful residential supportive housing at the Premises. The injunction shall take effect upon Plaintiff's posting of an undertaking of \$2,500 and service of the Preliminary Injunction, and shall remain in effect until further order of the Court or entry of final judgment.

MOVING

PARTY shall provide notice of this order.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court